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CONSERVATION RESTRICTION

The undersigned, Jerry L. Holsinger, of Boxford, Essex County, Massachusetts hereby grants to ESSEX COUNTY GREENBELT ASSOCIATION, INC., a Massachusetts not-for-profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, a Conservation Restriction, pursuant to the provisions of Massachusetts General Laws, Chapter 184, Section 31 et seq., on the land located in Boxford, Essex County, Massachusetts described in Exhibit A (the "Premises") and Exhibit B ("Plan of Land") attached hereto and incorporated herein.

Said Jerry L. Holsinger and his successors in title to the Premises are hereinafter call the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and assigns are hereinafter called the "Grantee".

Whereas, the Premises provide protection of significant scenic, aesthetic, scientific and education value in its present state as a natural area and wooded space including a brook and vernal pond, which has not been subjected to development incompatible with said uses; and

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a valuable Massachusetts landscape embodying the special character of the region in which the Premises are located

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and have the common purpose of conserving the natural values of the Premises for this generation and future generations:

In order to preserve the Premises in perpetuity in the present natural scenic and wooded condition thereof, the Grantor grants to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts. The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following activities on the Premises:

- (a) Construction or placing of any buildings, mobile homes, roads, signs, billboards or other advertising, utilities, conduits, poles or other temporary or permanent structures on or above the ground;
- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, solid or chemical waste or other unsightly or offensive materials;
- (c) Cutting, removal or destruction of trees, shrubs or other vegetation except to implement disease prevention measures or for maintenance of existing footpaths;

(d) Excavation, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits in such manner as to affect the surface of the Premises;

(e) Any commercial, industrial or institutional use;

(f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and skimobiles, except such as may be necessary for maintenance, patrol or emergency use;

(g) Use of the Premises except for outdoor recreational purposes or other purposes permitting the Premises to remain predominantly in the natural condition thereof;

(h) Activities detrimental to drainage, flood control, water or soil conservation or erosion control; or

(i) Acts or uses which are detrimental to preservation of the Premises in the present condition thereof.

2. Reserved Rights. Notwithstanding anything contained in paragraph 1, the Grantor reserves for himself and his successors in title to the Premises and to the adjoining land shown as Lot 2 on

the plan referred to in Exhibit A recorded in Plan Book 162, Plan 49, as appurtenant to each separately of the Premises and said Lot 2, the rights and easements to conduct or permit the following activities on the Premises:

- (a) The use for all purposes for which residential ways are now or may hereafter customarily be used in said Boxford, of a way extending from Highland Road to a residence on said Lot 2, such way being situated in part on said Lot 2 and in part on the Premises, as referred to and identified in Exhibit B, and including without limitation, the rights and easements reserved as aforesaid, to maintain and repair the existing way, to alter, reconstruct and regrade such way, as the Grantor and his successors in title may determine to be reasonably necessary and appropriate, and to install, maintain, repair, replace, and use underground utility services in and along such way;
- (b) Activities preserving the ecological or natural historical value of the Premises or enhancing the awareness of such values, including but not limited to the maintenance of footpaths and the placing of small informative signs; and
- (c) Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent

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with the purpose of this Restriction.

3. Access by Grantee: Enforcement. The Grantee, through its duly designated officers, employees or agents, shall have the right to enter the Premises at reasonable times in a reasonable manner and after prior notice to the Grantor or his successors in title to the Premises, for the purpose of inspecting the Premises in order to ensure compliance with the terms of this Conservation Restriction and to prevent, abate or remedy any violations thereof. The Grantee shall also have the right, at its sole expense, to perform at reasonable times in a reasonable manner and after prior notice to the Grantor or his successors in title to the Premises, any act reasonably required to preserve or conserve the natural habitat of wildlife or plants located on the premises.

The burdens of this Conservation Restriction shall be deemed to run with the Premises and shall be enforceable against the Grantor and his successors in title in perpetuity. The Grantee shall have the right to enforce this Conservation Restriction by proceedings at law or in equity, including, but not limited to, the right to require the restoration of the Premises to their condition at the time of this grant.

4. Use By Others. Except as provided in the foregoing paragraph, no rights to enter the Premises are granted hereby to the Grantee, the public generally, or to any other person. Not-

withstanding the above, the Grantor recognizes that certain foot-paths located within the Premises are presently used by abutting neighbors to pass and repass by foot for purposes of quiet outdoor recreational and educational activities. Grantor hereby consents to the continuance of such activities, provided: (a) that no motor vehicles of any kind shall be permitted; (b) that no hunting, trapping or discharge of firearms shall be conducted; (c) that no activity of a commercial nature shall be allowed; (d) that no cutting or removal of vegetation shall be undertaken; (e) and that no disturbance to or removal of wildlife shall be permitted. The Grantor hereby reserves the right (i) to periodically post the Premises against entry and take such other measures as are necessary and appropriate to prevent the ripening of prescriptive rights in the Premises. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the same.

5. Assignment by Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170(h)(3) of the Internal Revenue Code provided that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

6. Representations of Grantee. Grantee represents that it is a not-for-profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it qualifies as a "Qualified Organization" as that term is defined in Section 170(h)(3) of the Internal Revenue Code of 1954, as amended.

grant of this Conservation Restriction, including but not limited to activity associated with the to/residential right of way. Grantee shall notify the Grantor in

7. Eminent Domain. In the event that all or any portion of the Premises is taken by eminent domain or judicial proceedings in the nature of eminent domain so as to extinguish the restrictions imposed hereunder, the Grantor and Grantee shall fully cooperate in such proceedings to recover the full value of the interests taken and all incidental or direct damages resulting from the taking. All expenses incurred by the Grantor and the Grantee in such action shall be paid out of the recovered proceeds. The remaining recovered proceeds (including, for purposes hereof, proceeds from any lawful sale of the property unencumbered by the restrictions hereunder) shall be distributed to the Grantor and the Grantee in shares proportional to the fair market value of their interests in the Premises on the date of extinguishment of this Conservation Restriction. For this purpose, the Grantee's interest shall be the amount by which the fair market value of the restricted land imme-

diately prior to the extinguishment of this Conservation Restriction is reduced by the restrictions imposed hereby. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purposes set forth herein.

8. Required Notifications. Grantor shall notify Grantee in writing before conveying the Premises, or any part thereof, and before exercising any right reserved to him hereunder which may adversely affect the conservation interests associated with the grant of this Conservation Restriction, including but not limited to ^{activity associated with the} residential right of way. Grantee shall notify the Grantor in writing in the event that it assigns this Conservation Restriction.

9. Binding Effect: Interpretation. This Conservation Restriction shall be binding upon and shall be enforceable against the Grantor and his successors in title to the Premises by the Grantee, its successors and assigns, as holders of this Conservation Restriction.

Essex County Greenbelt Association, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Essex County Greenbelt Association, Inc.

by: [Signature]

hereunto duly authorized

This Conservation Restriction is given as a voluntary donation by the Grantor to the Grantee and no Massachusetts deed excise stamps are affixed hereto, none being required by law.

IN WITNESS WHEREOF, the said Jerry L. Holsinger has hereunto set his hand and seal this 6th day of September 1989.

Jerry L. Holsinger
Jerry L. Holsinger

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

September 6 1989

Then personally appeared the above-named Jerry L. Holsinger and acknowledged the foregoing instrument to be his free act and deed, before me.

Doris R. Kuhn
Notary Public

My Commission Expires: October 20, 1989

Essex County Greenbelt Association, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Essex County Greenbelt Association, Inc.
By: [Signature]
hereunto duly authorized

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that we approve the foregoing Conservation Restriction pursuant to G.L.c. 184, Section 32.

Alfred W. Conroy

Alfred J. Conroy

Boxford Board of Selectmen

APPROVAL BY SECRETARY

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction has been approved as being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date: 12/26/89

[Signature]
Secretary, Executive Office

of Environmental Affairs

EXHIBIT A

A certain parcel of land situated in Boxford, Essex County, Massachusetts, shown as Lot 3 on a plan entitled "Plan of Land in Boxford, MA, Property of Estate of Mabel L. Greenler," dated October 28, 1980, by Hancock Survey Associates, Inc., recorded with Essex South District Registry of Deeds in Plan Book 162, Plan 49, and bounded and described as follows:

- SOUTHERLY** by the northerly line of Highland Road ninety-seven and 49/100 (97.49) feet;
- EASTERLY** by Lot 2 as shown on said plan, six hundred fifty (650.00) feet;
- SOUTHEASTERLY** by said Lot 2, in two courses measuring respectively, six hundred twenty and no/100 (620.00) feet, and six hundred twenty-four and 48/100 (624.48) feet;
- SOUTHERLY** by land shown on said plan as of Bakewell, by four courses measuring, respectively, ninety-four and 06/100 (94.06) feet, fifty-three and no/100 (53.00) feet, thirteen and no/100 (13.00) feet and sixty-eight and 55/100 (68.55) feet;
- EASTERLY** by the same, eighty-two and 89/100 (82.89) feet;
- SOUTHERLY** by the same, by two courses measuring, respectively, two hundred three and 71/100 (203.71) feet and fifty-five and 19/100 (55.19) feet;
- EASTERLY** by land shown on said plan as of Martin by two courses measuring, respectively, two hundred eighteen and 95/100 (218.95) feet and one hundred fifty-nine and 22/100 (159.22) feet;
- NORTHWESTERLY** by land shown on said plan as of Barnes, eighty-seven and 36/100 (87.36) feet;
- NORTHEASTERLY** by land shown on said plan as of said Barnes and of Abraham, by three courses measuring, respectively, two hundred two and 93/100 (202.93) feet, forty and 90/100 (40.90) feet and two hundred seventy-four and 11/100 (274.11) feet;
- NORTHWESTERLY** by land shown on said plan as of O'Brien, two hundred eighty-two and 33/100 (282.33) feet;